

Calendar Line 1

Case Name: In Re Estate of TIMOTHY A. GALLAHER

Case No.: 26PR202524

Timothy Gallaher (“Decedent”) passed away on March 21, 2026. Patricia Upham, Decedent’s sister, and Christopher Upham, Decedent’s nephew, (collectively, “Petitioners”) filed a petition for probate in which they sought to be named co-executors of the estate. Shelby Luchesi-Gallaher (“Objector”), Decedent’s daughter, objected to Petitioners’ petition and filed a competing petition for probate and letters of administration with will annexed, seeking appointment of professional fiduciary Gary Emil Loebner, CLPF No. 010. At this time, no administrator has been appointed.

Currently before the court is Objector’s motion to compel third party Lincoln National Life Insurance Company (“Lincoln”) to comply with Objector’s deposition subpoena. Petitioners have opposed the motion, contending among other things, that Objector failed to show that she had served the motion on Lincoln, the deponent. In reply, Objector asserts that Lincoln was served on August 11, 2026, less than 16 court days before the date of the hearing on this matter, August 20, 2026. (See Code Civ. Proc., § 1005, subd. (b) [motion must be served and filed at least 16 court days before the hearing].) As the deponent from whom records are sought, Lincoln is entitled to full notice of the motion hearing. Accordingly, the court must continue the hearing on the motion.

The motion to compel compliance with deposition subpoena is hereby CONTINUED to August 31, 2026 at 10:00 a.m. in Department 2. Objector is ordered to notice all necessary parties with the new hearing date.

The Court will prepare the final order.

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